
2:00 PM **LINE 3**

22-CIV-03134

HARRISON BOMTEMPO VS. KI SPEED, INC.

HARRISON BOMTEMPO
K1 SPEED, INC.

EDWIN AIWAZIAN
JAMES A. D'AMBROSIO

COMPLEX CASE STATUS CONFERENCE – FINAL COMPLIANCE HEARING

TENTATIVE RULING:

On October 27, 2025, by written order filed November 7, 2025, this court approved the settlement in this Class Action and Private Attorney's General Act (PAGA) matter and the court set a compliance hearing for August 26, 2026.

On August 14, 2026, Amanda Howard of ILYM Group, Inc. (ILYM), the settlement administrator, filed a declaration setting forth the work that it performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

According to Howard's declaration, ILYM Group issued and mailed the Individual Settlement Payments to the 2,308 Participating Class Members. The total amount sent to the Participating Class Members was \$855,946.86. All other disbursements including for attorneys' fees and costs, the service award to the class representative, and to the LWDA, have also been made.

The time for cashing the checks expired on June 24, 2026. Howard's declaration states that there are 836 settlement checks, totaling \$209,876.14, that remain uncashed.

As previously ordered, ILYM Group is to cancel the uncashed checks, and in accordance with California Code of Civil Procedure, section 384, the funds (and any interest accrued thereon) associated with such canceled checks shall be sent by ILYM Group to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Code of Civil Procedure, sections 1500, et seq. Within seven (7) days thereafter, ILYM Group is further ordered to file, serve, and email to Department 28 a declaration stating that it has done so. Once this declaration is filed, the case will be fully resolved and will be closed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 4**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC., ET AL

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

CHRISTINA BEGAKIS
KANDICE CANCHAN

MOTION TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET ONE);
REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,760.00

TENTATIVE RULING:

Plaintiff's motion to compel defendant Ishar Investments, Inc. to provide initial responses to his Requests for Production of Documents, Set One, is moot. The declaration of Junlin Liu indicates that plaintiff received responses from defendant on September 11, 2025. While plaintiff argues that the responses are unverified and, therefore, the equivalent of no response at all, this is incorrect. Code of Civil Procedure, section 2031.250 provides that the party to whom the request is directed shall sign the response under oath unless the response contains only objections. It further provides that the attorney for the responding party shall sign any responses that contain an objection. The Liu declaration states that the responses received on September 11, 2025, contained only objections. The copy of the responses attached to the Liu declaration is signed by counsel for defendant. If plaintiff contends that the objections lack merit, the proper method to address that issue is a motion to compel further response pursuant to Code of Civil Procedure, section 2031.310. Defendant's contention that such a motion is barred by the 45-day time limit in Code of Civil Procedure, section 2031.310, subdivision (c) is not currently before the court.

Notwithstanding this ruling, defendant's counsel is admonished to provide substantive responses to plaintiff's discovery requests to avoid costly, time-consuming and unnecessary discovery motions.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.